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**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX**

SUMMONS

SUCILKUMAR RAMNAUTH

Plaintiff,

v.

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER JORDAN
CASTRO, SHIELD, #28719 OF PSA7

Defendants.

Index No.:

Date Filed:

Plaintiff(s) designate(s)
BRONX COUNTY as
the place of trial.

The basis of venue is:
Plaintiff(s) residence
1769 Eastburn Avenue
Bronx, NY 10457

TO THE ABOVE NAMED DEFENDANT(S):

YOU ARE HEREBY SUMMONED and required to serve upon Plaintiff's attorneys an answer to the complaint in this action within twenty (20) days after the service of this summons, exclusive of the day of service, or within thirty (30) days after service is complete if this summons is not personally delivered to you within the State of New York. In case of your failure to answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 8, 2014

Yours, etc.,

CELLINO & BARNES, P.C.

By: 

Bruce S. Cantin, Esq.
Attorneys for Plaintiff
420 Lexington Avenue, Suite 2140
New York, NY 10170
(800) 888-8888 x547

CITY OF NEW YORK, Comptroller, One Center Street, NY, NY 10007
NYC POLICE DEPT., Office of the Comptroller, 1 Center Street, New York, NY 10007
P.O. JORDAN CASTRO Shleld #28719, % N.Y.P.D., 1 Police Plaza, NY, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SUCILKUMAR RAMNAUTH,

Plaintiff,

VERIFIED COMPLAINT

v.

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT and POLICE OFFICER JORDAN
CASTRO, Shield #28719 of PSA7,

Index No.

Defendants.

Plaintiff, SUCILKUMAR RAMNAUTH, by Plaintiff's attorneys, CELLINO & BARNES, P.C., for complaint against defendants, CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and POLICE OFFICER JORDAN CASTRO shield No. 28719 of PSA7, allege upon information and belief:

**AS AND FOR A FIRST CAUSE OF ACTION FOR POLICE BRUTALITY AND
VIOLATION OF CIVIL RIGHTS**

1. That at all times herein relevant, Plaintiff SUCILKUMAR RAMNAUTH was and remains a resident of the County of Bronx, City and State of New York.

2. That at all times herein relevant, defendant, THE CITY OF NEW YORK ("CITY") was and remains a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. That at all times herein relevant, the defendant CITY, its agents, servants, employees and/or licensees operated, maintained and controlled NEW YORK

CITY POLICE DEPARTMENT, including POLICE OFFICER JORDAN CASTRO thereof.

4. That at all times herein relevant, defendant, NEW YORK CITY POLICE DEPARTMENT ("NYPD"), its agents, servants, employees and/or licensees operated, maintained and controlled its personnel.

5. That a Notice of Claim was filed September 25, 2013.

6. at more than thirty (30) days have elapsed since the presentation by Plaintiff of said Notice of Claim and his claim remains unadjusted.

7. That the within action is being commenced by service of a Summons and Verified Complaint within one (1) year and ninety (90) days from the date of the occurrence.

8. That a hearing pursuant to General Municipal Law 50-h has yet to be scheduled.

9. That on July 1, 2013, at all times as stated herein, Plaintiff was a lawful citizen abiding by all laws, statutes and ordinances of the State of New York and the United State of America.

10. That on July 1, 2013, Plaintiff was lawfully on the sidewalk in front of 232 West 231st Street, in the County of Bronx, City and State of New York when NYPD police officers ("officers") and/or defendant POLICER OFFICER JORDAN CASTRO unlawfully and wrongfully apprehended, detained, assaulted and battered Plaintiff despite the fact that he had done nothing unlawful.

11. That at all times hereinafter mentioned, the police officers including defendant POLICE OFFICER JORDAN CASTRO referred to in paragraph 10 were acting in the scope of their employment as police officers for the defendants THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

12. That at all times relevant herein, the officers, including defendant POLICE OFFICER JORDAN CASTRO, assaulted and detained Plaintiff without reason, justification, notice or warning.

13. That on July 1, 2013, the plaintiff was wrongfully and falsely accused of the crimes of assault and related offenses thereafter.

14. That on July 1, 2013, the aforesaid Police Officers, including defendant POLICE OFFICER JORDAN CASTRO, failed and/or refused to explain to Plaintiff the reason for his assault, arrest and detention.

15. That on July 1, 2013, the assault and detention of Plaintiff was unlawful, unwarranted and unjustified.

16. That on July 1, 2013, at all relevant times herein, notwithstanding that the apprehension, and detention was unjust, unwarranted, without cause, with excessive force and unlawful, Plaintiff complied with the officers' commands and did not resist.

17. That on July 1, 2013, during the unlawful apprehension, detention, assault and battery of Plaintiff, the NYPD police officers, including defendant POLICE

OFFICER JORDAN CASTRO, used excessive, unnecessary and unwarranted force upon him.

18. That on July 1, 2013, the defendants NEW YORK CITY POLICE DEPARTMENT, including POLICE OFFICER JORDAN CASTRO, were acting within the scope and authority of their employment and office, as they wickedly and maliciously physically assaulted the plaintiff, SUCILKUMAR RAMNAUTH, while being arrested, searched and detained.

19. That the said arrest and imprisonment of plaintiff SUCILKUMAR RAMNAUTH was caused by the said defendants, their agents, servants and employees, without legal process, without authority of the law and without reasonable cause or belief that the plaintiff, SUCILKUMAR RAMNAUTH, was in fact not guilty of such crimes.

20. That at all times relevant herein, the NYPD officers, including defendant POLICE OFFICER JORDAN CASTRO, forced Plaintiff onto the sidewalk for a protracted period of time.

21. That at all times relevant herein, the NYPD officers, including defendant POLICE OFFICER JORDAN CASTRO, refused Plaintiff's repeated requests and complaints to be released from the harsh conditions with his face pressed into the sidewalk.

22. That at all times relevant herein, Plaintiff suffered extreme and protracted pain to his head, neck, face, eyes, nose, back and limbs as a result of the excessive force.

23. That at all relevant times herein, defendants, their agents, servants and/or employees violated Plaintiff's civil rights, including her right to personal freedom for a lengthy and unreasonable amount of time.

24. That at all relevant times herein, defendants, their agents, servants and/or employees violated Plaintiff's civil rights, including his right to personal freedom for a lengthy and unreasonable amount of time.

25. That at all relevant times herein, The City maintained NYPD and employed its police officers.

26. That at all relevant times herein, upon information and belief, The City was responsible for the training of its police officers.

27. That at all relevant times herein, upon information and belief, NYPD was responsible for the training of its police officers.

28. That at all relevant times herein, The City was negligent in the hiring, training, supervision, discipline, retention and promotion of the agents, servants and/or employees of NYPD.

29. That at all relevant times herein, NYPD was negligent in the hiring, training, supervision, discipline, retention and promotion of its agents, servants and/or employees.

30. That at all relevant times herein, The City knew or should have known of the discriminatory nature, bad judgment and unlawful propensities of the officers involved in the violation of Sharron's civil rights.

31. That at all relevant times herein, NYPD knew or should have known of the discriminatory nature, bad judgment and unlawful propensities of the officers involved in the violation of Plaintiff's civil rights.

32. CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT were further negligent in the training, supervision, management and control of the above-described officers and in their policies and procedures, and were negligent and had reckless disregard for the welfare of the public in general and of this claimant in particular, in that they failed to reassign these officers when they knew or should have known of these police officers' propensity to violence, to use excessive force and the abuse of process.

33. That at all relevant times herein, defendants, their agents, servants and/or employees were negligent, reckless and intentional in their treatment of Plaintiff and their failure to protect him from the violation of his civil rights, including her right to personal freedom.

34. That at all relevant times herein, defendants, their agents, servants and/or employees were negligent, reckless and intentional in their treatment of Mr. McGee and their failure to protect him from the violation of his civil rights, including his right to personal freedom.

35. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Plaintiff suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

**AS AND FOR A SECOND CAUSE OF ACTION FOR
VIOLATION OF CIVIL RIGHTS**

36. Plaintiff repeats and reiterates each and every paragraph previously set forth herein.

37. As a result of their actions, defendants, acting under "color of law," deprived Plaintiff of his right to freedom from the use of excessive force without due process of law in violation of the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States and 42 U.S.C §1983.

38. Defendants subjected Plaintiff to these deprivation of his rights either maliciously or by acting with a reckless disregard for whether Plaintiff's rights would be violated by their actions.

39. As a result of the aforesaid occurrence, Plaintiff suffered the damages and injuries aforesaid. All defendants are liable for said damages and injuries.

40. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Plaintiff suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

**AS AND FOR A THIRD CAUSE OF ACTION FOR POLICE BRUTALITY,
ASSAULT AND BATTERY**

41. Plaintiff repeats and reiterates each and every paragraph previously set forth herein.

42. That at all relevant times herein, defendants, their agents, servants and/or employees were under a duty to protect Plaintiff from the violation of his civil rights, menacing, assault battery, excessive force, brutality, and/or other intentional acts, negligence, recklessness and/or want of care in her detention and/or arrest by the NYPD police officers committing said acts.

43. That at all relevant times herein, defendants, their agents, servants and/or employees menaced, assaulted, battered, and used excessive force, maliciousness and brutality in the arrest, detention and custody of Plaintiff.

44. That at all relevant times herein, defendants, their agents, servants and/or employees caused Plaintiff to reasonably apprehend that he was about to be harmfully and offensively contacted in his detention.

45. That at all relevant times herein, defendants, their agents, servants and/or employees offensively contacted and harmed Plaintiff during his detention.

46. That at all relevant times herein, defendants, their agents, servants and/or employees acted in an unsafe and unreasonable manner in the detention and custody of Plaintiff under the circumstances and conditions then and there existing.

47. That at all relevant times herein, defendants, their agents, servants and/or employees were negligent, reckless and intentional in their failure to protect Plaintiff from the violation of his civil rights, menacing, assault, battery, excessive force and brutality in his detention.

48. That solely as a result of the negligence, recklessness and/or intentional acts of defendants as aforesaid, Plaintiff suffered great humiliation, degradation, emotional injuries; loss of freedom; deprivation of her state and federal constitutional rights; serious, severe and permanent personal injuries and disabilities; pain and suffering and loss of enjoyment of life; economic harm; was rendered sick, sore, lame and disabled; sustained severe mental anguish, nervous shock and great physical pain and has been damaged accordingly in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION FOR PUNITIVE DAMAGES

49. Plaintiff repeats and reiterates each and every paragraph previously set forth herein.

50. Due to the above, Plaintiff should be awarded punitive damages as against the defendants in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction.

WHEREFORE, Plaintiff, demands judgment against the defendants stated herein under the first cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter; under the second cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter; under the third cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter; under the fourth cause of action in an amount exceeding the jurisdictional limits of all lower courts, which would otherwise have jurisdiction over this matter, and Plaintiff, together with the costs and disbursements of this action.

DATED: New York, New York
April 8, 2014

CELLINO & BARNES, P.C.

By: 

BRUCE S. CANTIN, ESQ.
Attorneys for Plaintiff
420 Lexington Avenue, Suite 2140
New York, NY 10170
(800) 888-8888 x547

VERIFICATION

The undersigned, an attorney admitted to practice in the Courts of New York State, shows: that deponent is a partner with CELLINO & BARNES, P.C., the attorney of record for Plaintiff in the within action; that deponent has read the foregoing Verified Complaint and knows the contents thereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged on information and belief, and that as to those matters deponent believes it to be true. Deponent further says that the reason this verification is made by deponent and not by Plaintiff is that Plaintiff resides in a County other than the County in which deponent's office is located.

The grounds of deponent's belief as to all matters not stated upon deponent's knowledge is a review of the file, including accident reports, witness statements, medical records and conversations and conferences with Plaintiff.

The undersigned affirms that the foregoing statements are true, under the penalties of perjury.

Dated: April 8, 2014
New York, New York



Bruce S. Cantin

Index No:

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

SUCILKUMAR RAMNAUTH,

Plaintiff(s),

-against-

CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and POLICE
OFFICER JORDAN CASTRO, Shield #28719 of PSA7

Defendant(s),

SUMMONS & COMPLAINT

CELLINO & BARNES, P.C.

Attorneys for Plaintiff

Office & Post Office Address, Telephone

420 Lexington Avenue, Suite 2140

New York, New York 10170

(212) 804-7400

Service of a copy of the within is hereby admitted.

Dated: New York, New York
April , 2014

PLEASE TAKE NOTICE:

NOTICE OF ENTRY

that the within is a (certified) true copy of an Order
duly entered in the office of the clerk of the within named court on

NOTICE OF SETTLEMENT

that an order
presented for settlement to the HON.
within named Court, at
on at

Dated:

of which the within is a true copy will be
one of the judges of the

M.

Yours, etc.

CELLINO & BARNES, P.C.

Attorneys for Plaintiff

420 Lexington Avenue, Suite 2140

New York, New York 10170

(212) 804-7400